

Judicial Decisions, Backlash and Secessionism: The Spanish Constitutional Court and Catalonia *

Agustin Casas [†], Federico Curci [‡] and Antoni-Italo De Moragas [§]

September 30, 2023

Abstract

We exploit a unique quasi-experiment to study the effects of judicial decisions on sensitive issues on political attitudes. In 2010, the Spanish Constitutional Court partially overruled the new Catalan Constitution—the *Estatut*—that granted further decentralization. Our identification strategy relies on the fact that this ruling occurred amid a public opinion survey. We find that the ruling increased support for independence by 5 percentage points. We interpret this result as evidence of judicial backlash on political attitudes: a judicial decision that limited further autonomy triggered a shift in attitudes towards even more autonomy. Moreover, the ruling decreased trust in the courts and satisfaction with democracy. This backlash of political attitudes extends to other spheres: Catalans increased their national identification with their region and the support for pro-decentralization parties. Finally, we show that the ruling increased polarization around the partisan and identity cleavages.

JEL Classification: P00 (Political Economy and Comparative Economic Systems), D02 (Institutions: Design, Formation, Operations, and Impact), K4 (Legal Procedure, the Legal System, and Illegal Behavior), H7 (State and Local Government; Intergovernmental Relations), H77 (Intergovernmental Relations; Federalism; Secession), N44 (Europe: 1913-), Z1 (Cultural Economics; Economic Sociology; Economic Anthropology)

Keywords: Judicial Decisions, Supreme Court, Decentralization, Backlash, Secessionism, Catalonia, Identity Politics, Polarization.

*We thank Andreu Arenas, Ciril Bosch, Antonio Cabrales, Irma Clots-Figueras, Emilio Depetris-Chauvin, Ruben Durante, Gabriele Gratton, Nicola Mastroiocco, Shanker Satyanath, and the seminar participants at CEMFI, EUI, IEB/UB, IESEG, Instituto de Empresa, Macquarie University, MAPE Workshop, NOVA SBE, RHUL/QMUL Workshop on the Political Economy of Conflict, SIOE 2020, Universidad Carlos III de Madrid, UCM, UIB, Universidad del Rosario, UdeSA, and the University of New South Wales for their valuable comments.

Casas acknowledges the support of ECO2017-85763-R (AEI/FEDER, UE), and Curci and De Moragas acknowledge the support of PGC2018-099415-B-I00 MICINN/FEDER/UE. The project leading to these results also received funding from “la Caixa” Foundation under the agreement LCF/PR/PR13/51080004 (Casas). The authors acknowledge financial support from Fundación Ramón Areces through the XIX Concurso Nacional para la Adjudicación de Ayudas a la Investigación en Ciencias Sociales and PID2021-127822NA-I00 (AEI/MICINN).

This paper was previously circulated as "Checks and Balances and Nation Building: The Spanish Constitutional Court and Catalonia."

[†]CUNEF Universidad and INARBE. E-mail: acasas@cunef.edu

[‡]CUNEF Universidad. E-mail: federico.curci@cunef.edu.

[§]CUNEF Universidad. E-mail: antoni.demoragas@cunef.edu

1 Introduction

In recent years, courts have played a crucial role in addressing divisive issues such as same-sex marriage, abortion, and affirmative action. The U.S. Supreme Court’s decisions in *Brown v. Board of Education* and *Roe v. Wade* have been particularly influential in areas like school integration and sexual rights. This influence of courts on issues that are traditionally within the domain of politics is known as judicialization of politics (Hirschl, 2008).¹ In this paper, we study the effect of judicial decisions about sensitive issues on political attitudes. Specifically, we show that judicial decisions can trigger public opinion backlash, not only against the content of the ruling but also towards the institution itself, thereby eroding trust in democratic institutions. Furthermore, when the judicial decision relates to a sensitive political cleavage, it further intensifies polarization around that cleavage.

We focus on a prominent judicial decision that occurred in Spain in 2010: The Spanish Constitutional Court ruling on the Catalan Constitution—the *Estatut*. In 2006, a new Catalan Constitution was approved by both the Spanish and Catalan parliaments and endorsed through a referendum in Catalonia. The text, among other features, proposed a greater degree of decentralization. However, it was appealed to the Spanish Constitutional Court, which partially overruled it in June 2010. Within two years of the ruling, by June 2012, the support for independence doubled among Catalans. This surge led to pro-secession demonstrations and culminated in the events of 2017, which included a referendum, a failed attempt at independence, and several members of the Catalan Government imprisoned.

To study the effect of the ruling of the Constitutional Court on political attitudes, we exploit the fact that the ruling was fortuitously released during the fieldwork of a survey on political attitudes in Catalonia. Moreover, after four years of deliberations of the Constitutional Court, the timing of the final ruling was largely unpredictable. Thus, the interaction of the ruling of the Constitutional Court with the timing of the survey creates a quasi-random assignment of respondents to the exposure to the judicial decision. Exploiting this identification strategy, we compare the self-reported political attitudes of individuals interviewed immediately before the release of the ruling with those of individuals with the same characteristics but interviewed in the days after the ruling.

This unique setting allows us to provide the first causal evidence of backlash of political attitudes related to the content of a judicial decision and against the institution responsible for it. Moreover, the richness of our data allows us to increase this contribution further and show that this backlash is consistent with the Catalans’ stance in other

¹This influence of the Justice branch of the government (in particular, judges and courts) is known as judicialization of politics, as noted in Hirschl (2008). The author points out that the judicialization of politics has reached “existential” issues of the democratic polity, such as the boundaries of the “Jewish collective in Israel” and the role of Quebec in Canada. In Europe, the French and German “Supreme Courts” have had differing rulings about national vs. EU supremacy and established the supremacy of the EU Court of Justice under some “conditions” (Pietersen and Chatziathanasiou, 2021).

domains, like identity and voting.

In particular, we find that the ruling increased support for independence in Catalonia by approximately 5 percentage points. This represents a substantial effect because, when the ruling took place, support for independence stood at 23%. Moreover, support for greater decentralization, either in the form of independence or a federal state, also increased at the expense of the status quo or reduced autonomy. In other words, the Constitutional Court’s ruling, which limited political decentralization, prompted Catalans to intensify their political attitudes toward greater decentralization and secession. We find that this sentiment does not fade over time in our survey. Furthermore, this backlash is also present beyond the content of the ruling, also impacting perceptions of institutions. We demonstrate that the ruling led to a 10% decrease in trust in courts and satisfaction with democracy.

These results can be embedded in the debate about whether judicial decisions move public opinion toward the Court’s stance (known as the legitimization theory) or in the opposite direction (the backlash theory), as described comprehensively in Ura (2014). We improve on these papers in several dimensions related to identification, results, and measurement. While the causal evidence is scant and tends to favor the legitimization theory, we provide quasi-experimental evidence of backlash using a direct measure of the respondent’s opinion about the issue in question and trust in democratic institutions.²

All of our results are robust to several specifications and robustness checks. In particular, treatment and control observations are balanced in terms of observable characteristics and exhibit no differences in non-response rates. No significant confounding events occurred during the fieldwork, with the exception of some football matches of the 2010 World Cup, which Spain won a few days after the fieldwork ended. Considering that victories of national teams in sports competitions could affect national identity (Depetris-Chauvin, Durante and Campante, 2020), we provide evidence that our main estimates are not affected by these games. Moreover, the unexpected release of the ruling ensures that anticipation and non-compliance do not compromise our design. We provide an extensive discussion of all the evidence supporting our identification strategy in the paper.

The richness of our data allows us to show that the above-mentioned backlash extends to other domains consistently. We show that the ruling not only generated a backlash in attitudes toward decentralization, but we also explore whether a similar effect transpires to other sensitive political cleavages in Spain: identity and party divisions.

First, Spanish regions (as administrative and political units) mostly overlap with historical ethnolinguistic divisions. Therefore, the Court’s ruling, which curtailed the decentralization of a region, may have been perceived as unfavorable by people with a strong regional identity. Indeed, we show that, on average, respondents reacted to the ruling

²Exploiting an error correction model and yearly data, Ura (2014) provides evidence for the legitimization theory in the long run, after a negative reaction in the short term, estimating the effects of liberal verdicts of the Supreme Court on an index of liberal political attitudes and not on the direct issue of the rulings. One exception to correlational studies is Bishin et al. (2016), which provides online experimental evidence for the legitimization theory.

by further reinforcing their Catalan identity (rather than the Spanish one). The share of respondents who felt "only Catalan" increased by 2 percentage points. Additionally, the ruling generated polarization within Catalonia. Individuals with Catalan parents, who ex-ante had strong Catalan identity and were more pro-secession, increased their support for independence even further.

These results relate to the literature of identity politics in which external events result in an intensification of identity (Clots Figueras and Masella, 2013; Fouka, 2020; Dehdari and Gehring, 2022; Gehring, 2022).³ We contribute to this literature by showing these effects as a result of a judicial decision, along with its consequence on polarization within those identity divisions.

Second, we study the partisan implications of the ruling. Not only did Catalans increase their support for more autonomy after the ruling, but this backlash translated into stronger support for parties more in favor of decentralization. We find that the ruling boosted the intention to vote for these parties by 9 percentage points. Moreover, taking into account that legislators of the Popular Party were the ones who put forward the appeal, we show that voters became more polarized over the degree of Catalan autonomy along this partisan division. While Catalans as a whole increased their support for decentralization, voters of the center-right Popular Party—who were already less supportive of decentralization—became even more pro-centralization after the ruling.

In the following subsection, we provide a detailed review of our contribution to the literature on the effect of judicial decisions, as well as to the identity literature and its implications on secessionism (along the lines of Alesina and Spolaore, 1997’s seminal work). In Section 2, we describe the institutional background. Sections 3 and 4 describe the data and our econometric strategy, respectively. In Section 5, we show the main results of backlash regarding the content of the sentence and trust in democratic institutions. In Section 6, we show additional results, consistent with the main backlash, on identity, voting, and their implications in terms of polarization. Finally, Section 7 concludes.

1.1 Literature review

We contribute to three different bodies of literature. First, we contribute to the research that studies how **judicial decisions** affect political attitudes. Second, we contribute to the growing literature on **identity**, and its implications on **secessionism**.

Judicial decisions: The most direct contribution of our paper concerns previous studies on the effects of courts’ rulings on political attitudes. Theoretically, as explained in Ura (2014), divisive/contested rulings can have two opposing effects: the public opinion shifts either toward the ruling’s position (the legitimation theory) or toward the opposite position (the backlash or “thermostatic” theory). This second effect can create an additional backlash when citizens’ confidence in the court also decreases following the ruling.

³Shayo (2020) and Bonomi, Gennaioli and Tabellini (2021) provide a comprehensive overview of the identity politics theories.

In summary, changes in public attitudes could show legitimization, opinion backlash and/or institutional erosion.

Most of the literature on this topic studies the effects of U.S. courts, with a particular focus on the Supreme Court’s rulings. The evidence is mixed and mainly correlational. However, there is stronger support for the legitimization theory: for instance, Bishin et al. (2016) provides experimental evidence regarding citizens’ attitudes toward a Supreme Court ruling about equal marriage rights. They partly find evidence for the legitimization theory among the general population, and, importantly, they rule out any opinion backlash, even among the “opposers”. Ura (2014) provides a dynamic evaluation of these attitudes and finds that the legitimization theory holds in the long-run. Hoekstra (2000, 2003) pose that the support for this theory may depend on the citizens’ priors about an issue, and they discuss the evidence.

Previous evidence of judicial backlash does not support the opinion backlash related to the content of the judicial decisions, but only the institutional erosion of the Supreme Court as in Hoekstra (2000, 2003). Even this second backlash is also nuanced: when trust in the U.S. Supreme Court diminishes among individuals who disagree ideologically with the decision taken by the Court (Bartels and Johnston, 2013; Ansolabehere and White, 2020; Nelson and Tucker, 2021), the effect seems to be subject to mean-reversion (Mondak and Smithey, 1997) and composition effects (Christenson and Glick, 2015).

To find any causal evidence of opinion backlash, we must go beyond judicial decisions and look instead at laws. Wheaton (2022) exploits the staggered adoption of laws in the U.S. and using a difference-in-differences strategy, he shows that backlash occurs with policy changes related to social issues (Equal Rights Amendments, legalization of marijuana, legalization of gay marriage, etc.). However, even focusing on the effect of laws, evaluated with the same identification strategy, Aksoy et al. (2020) find the opposite results in the European context. They exploit the staggered implementation of same-sex relationship laws (weddings, adoptions, etc.) across European countries. They show that when these policies obtain legal recognition, individual attitudes toward sexual minorities improve.

We contribute in two ways to the literature on judicial decisions (and laws). First, we provide convincing causal evidence of the effect of a ruling on political attitudes and support for the court.⁴ Second, we present evidence for a case in which a ruling causes backlash not only against the institution (erosion) but also in terms of the citizens’ opinion on the issue affected by the sentence (opinion backlash).

Identity: The advancements in the empirical literature on identity in economics are consistent with the changes documented by Besley and Persson (2021), i.e., political cleavages shifted from the classic economic dimension toward other self-identifying factors such as

⁴When discussed, the identification strategies in this literature are generally based on lagged preferences in public opinion or first differences. This approach can be problematic in the presence of omitted variables that cause, for instance, a change in opinions or secular trends.

gender, religion, or nation. Nonetheless, the theoretical literature has long been interested in how identity affects our actions (Akerlof and Kranton, 2000). Recent models (Shayo, 2009, 2020; Bonomi, Gennaioli and Tabellini, 2021) incorporate the idea that external events and their saliency can affect identity and, therefore, choices. The models’ intuition is as follows: individuals are sorted exogenously into non-exclusive groups. Depending on the circumstances, individuals may endogenously choose which of these groups they identify with more intensely, and this identification affects their choices. In Shayo (2020), group identification affects the choices either to benefit the group or to conform with the group’s norms. In Bonomi, Gennaioli and Tabellini (2021), group identity matters through a different channel: members of the group distort their beliefs toward those of the stereotypical group member.

The circumstances or exogenous events that affect identification can be as fortuitous as economic shocks (Guriev and Papaioannou, 2020) or football victories (Depetris-Chauvin, Durante and Campante, 2020).⁵ But, more related to our context, implementing laws and government policies can also affect identity and behavior. For instance, compulsory education (Bandiera et al., 2018; Fouka, 2020) and wars (Dell and Querubin, 2017; Gehring, 2022). Regarding the latter, Dehdari and Gehring (2022) and Gehring (2021) show that the Franco-German disputes (wars, nation-building and repression policies, etc.) for Alsace and Lorraine decreased identification with the national state. In the Spanish context, Clots Figueras and Masella (2013); Aspachs-Bracons et al. (2008) show that the compulsory implementation of the Basque and Catalan languages in schools resulted in individuals being more identified with these identities. Bridging education and war, Fouka (2020) study German language prohibition in U.S. schools after World War I. Exploiting that the ban took place in several, but not all, states, the author shows evidence of identity backlash.

We contribute to this literature by focusing on the effect on the identity of one particularly widespread type of event: judicial decisions affecting politically sensitive issues. Our results show that a judicial decision reducing further autonomy of a region may backlash. It can foster regional identity and polarization along this dimension.

Secessionism: Finally, our results also contribute to the break-up of nations’ literature. In the seminal paper of Alesina and Spolaore (1997), the incentives to secede are shaped by the peripheral regions’ “disconformity” with the national public goods, which may depend on ethnolinguistic cleavages. More recently, some papers have evaluated the determinants of the willingness to secede, focusing on income and identity. For instance, Desmet, Ortuño-Ortín and Özak (2022) find that identity (instead of income) is the main predictor of propensity to secede. However, Gehring and Schneider (2020) show that regional income complements regional identity in the sense that a minimum level of both

⁵For instance, Depetris-Chauvin, Durante and Campante (2020) shows that football victories in the qualification games of the Africa Cup of Nations increase identification with the nation (rather than the ethnic group) which, in turn, reduces conflicts.

is necessary for the electoral success of secessionist parties. Our analysis complements these results by providing a mechanism whereby self-perceived identity depends on the (changing) environment and can explain changes in support for secession through time, keeping income fixed.

2 Institutional background

Form of government: According to the Spanish Constitution, Spain is divided into seventeen autonomous regions (called *Comunidades Autónomas*) and two autonomous cities. Within each Autonomous Community, there are subregional political units: provinces and municipalities. Catalonia is one of these Autonomous Communities, and its capital, Barcelona, is its most populous city. Catalonia’s four provinces have an intermediate geographical unit called the *comarca* (42 in total). A *comarca*—which is an aggregation of municipalities—has 179,000 inhabitants and a size of 764 squared km on average. Like the fifty U.S. states, each region or Autonomous Community in Spain has its own regional constitution or “Statute of Autonomy.” Each of these statutes regulates the internal organization of the region (i.e., the regional parliament and government) and the relationship with the national state. Spain is not a federation; thus, the Autonomous Communities have less independence than American states. The extent of decentralization depends on the agreement through the national and regional institutional channels, which results in different regions having different responsibilities in the provision of public goods, tax collection, and spending (which are otherwise handled by the national state).⁶ In Appendix B.1, we provide further details of the Spanish form of government.

Political system: Since the return of democracy in 1978, the Spanish Government has alternated between two main national parties. Although both parties are moderate in economic and social terms, the Socialist Party (PSOE) is center-left and the Popular Party (PP) is center-right.⁷ PP is also the more centralist party in terms of preferences for regional decentralization. In addition to national parties, regional parties have enjoyed a sizable presence in the Spanish Parliament, occasionally allowing them to shift the majority of the Congress towards one of the main national parties. The two leading Catalan nationalist parties at the time were *Convergència i Unió* (CiU) and *Esquerra Republicana de Catalunya* (ERC). Whereas CiU was a center-right Catalan nationalist coalition governing the region from 1980 to 2003 whose main faction (*Convergència Democràtica de Catalunya*, CDC) transitioned to support independence formally in March 2012, ERC is a left-wing party that has unambiguously supported Catalan independence since 1989.

⁶Notably, one of the main differences concerns fiscal autonomy. While Basque Country and Navarre have fiscal autonomy, the rest of the Autonomous Communities, including Catalonia, share fiscal authority with the national state. Education, health, and social services are among the most important competencies assumed by the Autonomous Communities over the years.

⁷National parties have regional branches in Catalonia: *Partit dels Socialistes de Catalunya* (PSC) is the Catalan branch of PSOE and *Partit Popular de Catalunya* (PPC) is the Catalan branch of PP.

The Reform of the Catalan Constitution and the Spanish Constitutional Court:

The process of reform of the Catalan Statute of Autonomy traces back to the Catalan elections of 2003, where all parties but the centralist PP promised to reform the Statute of Autonomy, which dated from 1979. In September 2005, the Catalan Parliament approved a reform by 89% of the votes that included more power and new fiscal benefits for the Catalan government. The approved proposal was sent for review to Spain's Parliament, and after several amendments, the Spanish Parliament approved the reform. On June 18, 2006, the final version of the text was approved in a referendum in Catalonia. The referendum resulted in 78.1% of voters supporting the reform, with a turnout of 48.9%. In addition to this process, as with any other Spanish law, every reform of a Statute of Autonomy is subject to the rulings of the Constitutional Court—*Tribunal Constitucional*—regarding its constitutionality. PP challenged one hundred fourteen of the two hundred twenty-three articles of the approved regional Constitution and brought the case to the Constitutional Court. In Appendix B.2, we describe the role of the Spanish Constitutional Court.

The ruling of the Constitutional Court of Spain was released on June 28, 2010, four years after the approval of the new Statute of Autonomy. The Court struck down fourteen articles and curtailed another twenty-seven. The ruling interpreted that references to “Catalonia as a nation” in the preamble had no legal effect, rolled back the attempt to place the distinctive Catalan language above Spanish in the region and ruled that regional powers over courts and judges were unconstitutional.⁸ In the rest of the text, we refer to the ruling of the Constitutional Court on the Catalan Statute of Autonomy as *the Ruling*. After the Ruling, all major Catalan parties, except for PP, trade unions, and social organizations, called for mobilization across the region, and over a million people marched on July 10, 2010, led by a banner with the slogan “We are a nation. We decide.” This demonstration was the precursor of a series of massive pro-secession protests every September 11 to commemorate of Catalonia's national day in the following years.

The rise of Catalan secessionism: After eight years of being governed by a center-left coalition led by the Socialist Party of Catalonia, Artur Mas, CiU's leader, was elected President of Catalonia in December 2010. Since then, only Catalan nationalist parties have governed the region. This period was also characterized by a severe economic recession. Moreover, a massive and sudden increase in support for independence occurred after the Ruling: from 23% in April 2010—the last wave before the Ruling—to 48% in June 2012. Figure A.3 in Appendix B.3 shows the evolution of support in Catalonia for different levels of decentralization between 2006 and 2012.

Given the impossibility of holding a legal and binding self-determination referendum, Mas announced that the 2015 regional elections would be a *de facto* plebiscite for inde-

⁸Other articles affected by the ruling center on the decentralization of bank regulations, the possibility of creating new taxes at the local level, and the need to participate in the national mechanism of solidarity only between Autonomous Communities *when every Autonomous Community conducts a similar fiscal effort*. The full ruling can be found here.

pendence. Carles Puigdemont (from CiU) was elected president of Catalonia. In 2017, he held a referendum, which was declared illegal by the national authorities. Electoral violence ensued, independence was declared (and revoked), and several Catalan politicians were imprisoned. In Appendix B.4, we provide more details about the events related to the Catalan conflict in 2012-2017.

3 Data

The main data source of this paper is a computer-assisted telephone survey (the *Baròmetre d'Opinió Política*) run by the Catalan Public Opinion Center (CEO), fielded between June 28 and July 8, 2010. The order of the interviews is determined by a computer that randomly selects a telephone number from a database and makes the call after each interview finishes. If no one answers the phone, the number remains in the database. The respondents are randomly sampled from inhabitants of Catalonia who are at least 18 years old in two stages (the first stratification is by province and the size of the municipality, and the second is by gender and age) to keep the sample representative according to the 2009 population census (*Padró de Població*). Additionally, each province is weighted such that the sample is representative of Catalonia.

The firm that ran the survey had no individual socio-demographic information before the interview. The initial contact with the respondent was consistently made in Catalan. However, the interviewer would switch to Spanish if the respondent preferred to continue the interview in that language. Additionally, at the start of the interview, the interviewer explicitly asks the respondent which language (Spanish or Catalan) they would like to use during the interview. Logistically, there are three ways to finish an interview after it begins: i) the quota of the respondent's "type" has been fulfilled, ii) the respondent no longer wants to continue or, iii) the interview is complete. Our dataset contains the latter, i.e., completed interviews.

From each of the two thousand respondents, we employ data that include the time of the interview, individual sociodemographic characteristics (age, gender, sex, and marital status), socioeconomic characteristics (education, income, and employment status), national identity (the language spoken, region of birth of the respondent and their parents and national self-identification) and political attitudes (past voting behavior, intentions to vote, the preferred institutional relationship between Spain and Catalonia, trust in institutions, and self-assessed most important problems in Catalonia).⁹

The main outcome of interest, the variable *More Autonomy*, is the question regarding the preferred relationship between Catalonia and the Spanish central administration. Possible answers (in addition to "no answer" and "do not know") are coded into four categories. Ordered from less to more decentralization, the respondents can choose between Catalonia being a region with fewer competencies, an Autonomous Community (the sta-

⁹We code as missing values all unanswered or unknown answers.

tus quo), a state within a federal state, or an independent country. In the June/July 2010 survey, the support for independence was 26%. Moreover, to understand the impact of the Ruling on identity, we measure national self-identification with a Likert five-item scale question in which individuals are asked to rate whether they feel “only Spanish,” “more Spanish than Catalan,” “both Spanish and Catalan alike,” “more Catalan than Spanish,” or “only Catalan.” The summary statistics for the independent variables and other dependent variables are discussed in Section 4.1 and Appendix A.3, respectively.

Additionally, for the falsification tests and to investigate the long-term effects of the Ruling of the Constitutional Court on the Catalan Statute of Autonomy, we use other waves of the same survey conducted by the CEO. In particular, we collected data from the 25 waves from June 2006 to October 2012. In 2010, there were four waves of the CEO survey. The main data used in our paper corresponds to the third wave of 2010. The previous wave happened in April 2010, while the following occurred in October 2010.

Finally, it is worth pointing out the quality of the data. In Appendix A.4, we show that the survey run by CEO does not present any significant anomaly as the distribution of our main variable of interest, the support for more decentralization, is very similar to an alternative survey run by CIS, the main Spanish public opinion research center. Moreover, in Appendix A.5, we provide evidence about the neutrality of the polling institution, the firm running the survey, the implausibility of manipulation, and additional details about the survey logistics. It is important to highlight that the CEO public opinion surveys are done four times a year, at the same time each year, and with the same questions.

4 Empirical strategy

We are primarily interested in estimating the effect of the Ruling on individual political attitudes (Y_i).¹⁰ With this aim, we define the variable $Ruling_i$, which takes a value of one for all individuals interviewed after the Ruling was released and a zero value for all individuals interviewed before the Ruling, which was released at 7 pm on June 28, 2010. Therefore, those interviewed before the Ruling was made public are assigned to the control group, and those interviewed after the Ruling are assigned to the treatment group. Let X_i be a vector of observable sociodemographic characteristics,¹¹ and GEO_i are dummies

¹⁰We use different dependent variables: the preferred institutional relationship between Catalonia and Spain, support for independence, trust in political institutions, intentions to vote, cultural feelings and problems that are considered to be most important. Additional details on all the outcome variables used in the paper are presented in Appendix A.1.

¹¹The included controls are: whether Catalan was the language of the interview; whether the respondent spoke only Catalan with family members, at work, and with friends; whether the respondent was born in Catalonia, the rest of Spain or outside of Spain; whether the respondent’s father was born in Catalonia, the rest of Spain or outside of Spain; whether the respondent’s mother was born in Catalonia, the rest of Spain or outside of Spain; the respondent’s sex; whether the respondent was married; dummies for the respondent’s education; continuous variables for the age of the respondent and its square; dummies for the respondent’s income; and dummies for the respondent’s employment situation. More details can be found in Appendix A.2.1.

for the respondent’s city population and geographical (*comarcas*) fixed effects, i.e., the smallest available geographical unit observation. We define ϵ_i as the residuals. We define potential outcomes as $Y_i(0)$ and $Y_i(1)$ for the control and treated groups, respectively, and we estimate the following Model 1:

$$Y_i = \alpha_1 + \beta_1 Ruling_i + \gamma_1 X_i + GEO_i + \epsilon_i, \quad (1)$$

Our identification assumption is that the moment at which each respondent is interviewed is independent of the time at which the Ruling occurred; that is, we treat the timing at which the respondents were interviewed as random. In particular, we assume that the potential outcomes are independent of the timing of the interview. As we explain below, we address potential concerns about the structure of the fieldwork by adding controls and restricting our sample.

Although the order of the interviews is random, to avoid the possibility of people interviewed in the morning and afternoon being different, we restrict our sample to people interviewed before 7 pm. Similarly, to control for potential imbalances in the characteristics of the people interviewed at different stages of the fieldwork, we restrict our sample to the first seven days of interviews. Specifically, the quotas used for the CEO sampling are provinces, size of the municipality, gender, and age. If a specific quota is not filled, the last days of the survey might be dedicated to interviewing people with some particular characteristics. These restrictions leave us with 227 observations in the control group and 1,050 observations (of the 1,773 observations interviewed after the Ruling) in the treatment group.

In addition, we control for GEO_i and have a battery of controls potentially related to how the fieldwork was organized. Therefore, for our estimations, we assume that conditional on individual and geographical characteristics, the treatment status is orthogonal to the potential outcomes, $\{Y_i(0), Y_i(1)\} \perp\!\!\!\perp Ruling_i | X_i, GEO_i$. The inclusion of *comarcas* fixed effects and individual characteristics enables a comparison between different potential outcomes of people with similar characteristics inside the same geographical unit interviewed before and after the Ruling.

We cluster standard errors at the province-day of the interview level. The reason why we choose this clustering is twofold: a) the treatment takes place at the day level, and b) the weighting of observations for representativeness is at the province level. First, although the treatment affects everyone, the treatment takes place at the day level. People interviewed on different dates received the treatment for a different number of days and then were subject to different unobserved factors. Hence, because similar unexplained factors might affect the dependent variable on a particular day, the errors ϵ_i can be correlated within days. Second, the sampling process requires that each province is weighted such that the sample is representative of Catalonia. This weighting process can also create correlations of the errors at the province level, as the weighting also affects the error term. To limit these inference problems, we cluster the standard errors at the province-day of

the interview level.

This econometric strategy is robust to sampling restrictions, alternative fixed effects and controls, model specification and standard errors' clustering, as discussed in detail in Section 5.1.

Polarization effects

We also study the consequences of the Ruling in terms of the polarization of the Catalan society. Accordingly, we examine the heterogeneous effects of the Ruling on political attitudes. Specifically, to study whether the Ruling affected polarization through the salience of national identities (Catalan vs. non-Catalan), we focus on the heterogeneous effects with respect to the Catalan heritage of the respondent. With this aim, we create the variable *Catalan Heritage*, which takes a value of 1 when both parents of the respondent were born in Catalonia (37% of this sample had both Catalan parents), and 0 if at least one parent was born outside Catalonia. This definition of identity based on Catalan heritage is in line with the literature that considers identity formation a dynamic process in which children inherit their parents' identity (Bisin et al., 2011; Almagro and Andrés-Cerezo, 2020). The heterogeneous effects with respect to Catalan heritage are reported in Section 6.1. We estimate the model in Equation 1 with an interaction between *Catalan Heritage* and *Ruling* controlling for *Catalan Heritage*, instead of the separate dummies for the birthplace of the mother and father.¹²

Moreover, in Section 6.2 we study the polarization effects of the Ruling according to past vote for Popular Party. We do this augmenting the model in Equation 1 with a dummy for past vote for PP and its interaction with *Ruling*. Finally, we explore the interactions of *Ruling_i* with other ethnolinguistic, socio-demographic, and socio-economic variables, reported in Appendix C.2.2.

4.1 Evidence in favor of the identification strategy

In this section, we address the main concerns of our identification strategy: balancing, selection on unobservables, anticipation events, and other robustness checks.

Balancing on observables

The structure of the fieldwork can create potential imbalances between control and treated groups. Table 1 shows the summary statistics of the observed characteristics of the people interviewed before (column 1) and after (column 2) the Ruling. Column (3) summarizes the number of observations for each variable category in the sample. Column (4) reports a balancing test to show the difference in the observed characteristics for our treated and

¹²Additionally, as the Catalan origin of parents already predicts the language spoken at home, we do not include in the control variables the proxies for the language spoken by the respondents. The complete list of controls is reported in Appendix A.2.3.

control groups for the whole sample.

[INSERT TABLE 1]

The people interviewed before and after the Ruling do not differ in their observable characteristics except for some minor differences. The absence of differences between pre and post-observations could be driven by the low statistical power of the balancing test due to the lower number of observations in the control group. Hence, in column (5), we discard this possibility by showing that our balancing results are confirmed when we estimate the mean differences between the treated and the control groups augmented with observations from the previous survey wave (April 2010).

We finally show evidence for balancing between treated and control groups using the within-*comarca* variation we exploit in this paper (column 6). While we find small differences in one income category and in one municipality size category, we do not reject the joint zero statistical significance of the difference of all variables considered. Still, we include all these observable characteristics as controls in our specifications. For our identification assumption, we require that after controlling for these observable variables, the conditions for whether a person was interviewed before or after the Ruling can be considered to be as-if random.

We show additional balancing evidence in Appendix D.1. Notably, we show that the predicted support for independence in Catalonia and self-identification with the Catalan nation based on observables do not change for respondents interviewed after the Ruling (Appendix D.1.1). Similarly, we also show a balance of people interviewed before and after the Ruling with respect to local characteristics that can be predictors of strong local Catalan identity (e.g., the share of people born in Catalonia, that speak Catalan or with surnames typical of Catalonia) (Appendix D.1.2). Moreover, in Appendix D.2, we use the CEO wave anterior to the Ruling to show that during the days of the interviews, there was not a daily increase in the support for more autonomy for Catalonia, and hence nothing is special about being interviewed in the first day of interviews (that is, where our control group is defined).

Anticipation and non-compliance

Foreseeable events can produce biases if respondents who change their behavior due to anticipation effects self-select into the treatment or control groups. We argue that the exact day of the Ruling was unforeseeable. The PP appealed against the Catalan Statute of Autonomy in 2006, and the Constitutional Court published a final ruling four years later. Although the respondents may have known that the Constitutional Court was meeting on June 28, the exact day on which the ruling would occur was unknown. As *La Vanguardia*, one of the leading Catalan newspapers, reported on its front page on June 28, “the Constitutional Court meets today with the objective of ruling during the

week.” Along the same lines, *El País* reported that “The Constitutional Court begins today what may be its last plenary session, summoned to vote and rule on the sentence of the Catalan Statute, although it is expected to last the next several days”.¹³ Therefore, the fact that a ruling arrived at the end of June 28 was largely unpredictable. Confirming the absence of anticipation effects, we show in Figure A.15b that the number of news stories about the Ruling remained relatively low during the weeks before June 28, 2010, and only skyrocketed afterward. Moreover, the two previous dates with more news about the Ruling were not related to any filtration of the sentence’s content.

Similarly, the estimated effect would also be downward biased if people in the control group had correctly guessed the content of the Ruling. We cannot completely discard this bias, but we believe that this is not a major concern for several reasons. First, the final draft of the Ruling was not leaked before its approval. Second, six different alternative drafts were discussed unsuccessfully in previous meetings of the Constitutional Court, and, a few hours before the Ruling, the article from *El País* cited above reported that “the judges arrive at the meeting with the same starting positions that have caused the previous draft sentences to fail, so it is unlikely that the draft will be approved”.¹⁴

Moreover, suppose that the content of the Ruling was already known before the Ruling or largely anticipated by political propaganda of political parties. In that case, we should expect to observe a spike in the support for more autonomy in Catalonia in the previous years before the Ruling. Figure 1 shows evidence against this possibility by plotting the average support for more autonomy, by wave, demeaned by the average support in the interviews before the Ruling in June 2010. In other words, this figure examines the change in support for more autonomy between survey waves from 2006 to 2011, with respect to the control group used in our study (people interviewed in the third CEO survey wave of 2010 before the Ruling).¹⁵

[INTRO FIGURE 1 HERE]

Several considerations emerge from the analysis of this figure. The absence of significant changes in the support for more autonomy before the Ruling suggests the lack of pre-trends. This reaffirms the possibility that the content of the Ruling was unpredictable.

Additionally, Figure 1 shows an increase in support for more autonomy from the wave of the Ruling onward. This provides descriptive evidence of compliance, that the Ruling was an important event for Catalan citizens, and it potentially impacted support for more

¹³The respective news articles are available at [here](#) and [here](#).

¹⁴Third, as we discuss in Appendix C.4.3, partisans and opponents of the Catalan Statute of Autonomy decreased their trust in courts, which is consistent with uncertainty over the content of the Ruling.

¹⁵We do this using individual data from the CEO survey waves from June 2006 to October 2011, and we regress the individual support for more autonomy on survey dummies. We split the CEO third wave of 2010, when the Ruling took place, between treated and control observations, and we use the latter as the omitted category. The average support for more autonomy (on a scale from 1 to 4) was 2.61 in June 2006, 2.63 in June 2010 before the Ruling was released, and 2.81 in June and July 2010 after the Ruling took place.

autonomy. In Appendix D.3, we give additional evidence in favor of compliance, showing that right after the Ruling, news coverage and Google searches increased dramatically. Moreover, this increase in support for more autonomy appears to be sustained in the waves after the Ruling.¹⁶

Robustness and other potential threats

Although the use of sudden events in a survey to identify exogenous changes in individual attitudes has become a standard identification strategy in event studies, some concerns about the identification strategy and robustness of the results may arise, even with a random treatment. A recent methodological paper (Muñoz, Falcó-Gimeno and Hernández, 2018) reviews the literature in which this strategy is used and typifies the potential threats. Additionally, the authors highlight different practices to ensure the estimates' credibility, addressing each identification issue. We explicitly address each point made in this paper and further ones, and report a rich battery of robustness checks in Section 5.1 and Appendix E.

Moreover, while the short span of our survey allows us to rule out many alternative confounding factors, it is important to notice that the Ruling took place during the 2010 FIFA World Cup, which Spain eventually won. Depetris-Chauvin, Durante and Campante (2020) show that football victories can impact national identity, potentially affecting attitudes toward state centralization. In Section 6.1, when we present the effects of the Ruling on national identity, we discuss in detail the potential role of the World Cup and provide evidence that this event does not bias our estimates.¹⁷

5 Results

We first show that the Ruling did not go unnoticed in Spain, especially in Catalonia. Then, we present and discuss the effect of the Ruling on political attitudes. We show the backlash against the content of the sentence, i.e., support for further decentralization and independence. Additionally, we show the presence an additional backlash result related to institutional erosion. Finally, in 5.1, we present and discuss the main robustness checks. All results in this subsection rely on the estimation of the model in Equation 1.

Prominence of the Ruling: The release of the Ruling had prominence in the media and for Catalans. Panel (a) of Figure A.15 shows the increase in Google searches for *Estatut* in the day of the Ruling. Similarly, Panel (b) displays the mentions of *Estatut* and *Tribunal Constitucional* in newspapers. Moreover, we can observe the importance

¹⁶Section 6.3 discusses further evidence of the persistence of the effects of the Ruling across sample waves.

¹⁷Moreover, although we cannot entirely discard the presence of collateral events triggered by the Ruling that could affect our treatment group, it is unlikely that other confounding events that took place around the release of the Ruling affect our results. For instance, as discussed in Appendix D.4, the news coverage remains constant in our sample.

of the Ruling for Catalans directly in our survey: CEO asks an open question about the “current problems of Catalonia”. CEO coded the issues reported by the respondents into several categories, among them: the relationship between Spain and Catalonia, and more specifically, a subcategory that refers to people mentioning the *Estatut*. Columns (1) and (2) in Table 2 show that these two are the problems with the greatest change: the percentage of people reporting the relationship between Catalonia and Spain as the main problem increased by 8 percentage points (column 1). Among the specific institutional problems, the Statute of Autonomy was declared the main problem facing Catalonia by 6 percentage points more after the Ruling (column 2). These results are striking,¹⁸ especially in comparison to other significant issues as the economy and the labor markets (whose importance decreased, as shown in column 3), and public financing or “fiscal federalism” (reported in column 4).¹⁹

[INSERT TABLE 2 HERE]

Backlash of political attitudes: In Table 3, we show that the Ruling had a causal effect on support for more autonomy and, in particular, for independence. The main outcome variable regards the preferred institutional relationship between Catalonia and Spain. As a reminder, the variable *More Autonomy* takes a value from 1 to 4 if the respondent prefers Catalonia to be a region (less autonomy than the status quo), an Autonomous Community (the status quo), a federal state (more autonomy than the status quo), or an independent state, respectively. We interpret higher values of this variable as a greater desire for more autonomy.

Column (1) shows that the unconditional effect of the Ruling on support for more autonomy in Catalonia was 0.15 points. Column (2) confirms the impact of the Ruling when we control for individual characteristics and fixed effects at the *comarca* level.²⁰ We estimate that the Ruling increased support for more autonomy in Catalonia by 0.11 points in this preferred specification.²¹ Column (3) shows the impact of support for secession: we use the same specification as before, but we use a dummy for independence as the outcome. That is, a variable that takes value 1 if the respondent supports the independence of Catalonia. We find that the Ruling increased support for independence by 5.3 percentage points. Since the support for independence in the survey before the Ruling was 23%, we estimate that the Ruling increased support for independence by almost 20%.

¹⁸These results are economically very significant. People interviewed after the Ruling increased their reporting of the relationship between Catalonia and Spain and the Statute of Autonomy as the main problems of Catalonia by around 85%, compared to their average level.

¹⁹Table A.5 in Appendix C.1 confirms these results considering whether the respondent mentioned one of the issues as a problem facing Catalonia instead of whether it is the main problem.

²⁰The estimates of the effects of the controls are presented in Table A.6 in Appendix C.2.1. Moreover, Appendix C.2.2 shows the heterogeneity of the effect of the Ruling with respect to these ethnolinguistic, socio-demographic and socio-economic variables.

²¹As the standard deviation of the variable *More Autonomy* is 0.92, people interviewed after the Ruling had 0.124 standard deviations higher support for decentralization.

These are large effects. For instance, between 2006 and 2010, support for secession increased only by 1.4 percentage points per year, which is approximately 30% of the jump that we estimate.²² A complementary reference point is Clots Figueras and Masella (2013). In their article, with data from 2001, the authors find that Catalans exposed to compulsory schooling in Catalan increased their support for Catalan independence by 1.3 percentage points.

[INSERT TABLE 3]

Beyond the push for more autonomy, we can study how the Ruling affected support for each form of government. In Figure 2, we show the support for each type of government for Catalonia. We report the marginal effects of the ordered probit described in column (4) of Table 3. We observe that the Ruling increased support for the forms of government that imply higher autonomy (federal state and, especially, independence) at the expense of the options with less autonomy, such as the region or Autonomous Community (the status quo) categories. These average effects show that the Ruling provoked a shift in attitudes in favor of more autonomy. Interestingly, this is so despite the potential presence of status quo bias, which may be attenuating these results.

[INSERT FIGURE 2]

The main advantage of using within-survey variation (the CEO third wave of 2010, from June to July 2010) is that we can control for potential confounding factors. On the other hand, the narrow window between treated and control observations poses new questions (for instance, whether the effects persist in time or the role of the small sample size). To address these potential issues, in column (5) of Table 3, we show new results using the previous wave of the survey (the second wave, from April 2010). In column (6), we also add the following wave of the survey (the fourth wave, from October 2010).²³ The results do not change in magnitude or statistical significance. This is additional evidence that the small sample size is not affecting our results. This is consistent with Table 1, in which we show that the sample is still balanced when adding observations from the previous survey. Similarly, it is unlikely that a short-term emotional response drives our results, as the effect is still present in column (6).

On these lines, Figure 1 already showed a sustained increase of support after the wave of the Ruling. Additionally, in Appendix F.1, we conduct a more systematic analysis of the persistence of the effects across survey waves until 2012. We first predict the marginal effect of the Ruling on respondents based on their socio-economic and demographic characteristics. Then, we consider how this predicted effect explains support for

²²Support for independence in July 2006 was 16%.

²³In both columns (5) and (6), using additional waves, we have higher statistical power. In these specifications we remove our sample restrictions and we add fixed effects for the wave of the interview, whether he/she was interviewed after 7 pm or after the seventh day of fieldwork.

more autonomy in subsequent waves of the survey, and the results show, again, suggestive evidence of a long-term pattern.

Institutional erosion: The rapid upsurge of political attitudes for decentralization came along with an increased distrust in institutions and, more generally, dissatisfaction with democracy. Table 4 shows the effect of the Ruling on trust in national and regional democratic institutions. Trust is measured with an index that takes a value of 10 when there is maximum trust (0 for no trust). Columns (1) and (3) show that the Ruling caused distrust in the courts–0.36 points–and in the Spanish Parliament–0.19 points–, which were the active players in charge of the checks and balances.²⁴ Additionally, trust in the Spanish Government also decreased by 0.26 points (column 2).²⁵ While national institutions were negatively affected by the Ruling, columns (4) and (5) show that Catalan institutions were not affected, which suggests that institutional accountability across branches of government may be a relevant channel.

[INSERT TABLE 4 HERE]

Besides the specific institutions, it can be argued that satisfaction with democracy, as a whole, is negatively affected. Column (6) shows that the Ruling decreased trust in political parties by 0.25 points. Finally, Column (7) indicates that the Ruling increased the proportion of people unsatisfied with democracy by 6 percentage points (that is, by approximately 10%).

The results may be interpreted as if many Catalans saw the Ruling as unfavorable, which drew support for more autonomy toward the independence extreme. These results also show that the functioning of democracy as a whole may have been put under scrutiny, even though the reform of the Catalan Constitution was democratically approved by large majorities in the Spanish and Catalan Parliaments, and by a referendum,²⁶ and then followed all procedural rules of the Spanish democratic organization.

5.1 Robustness of the main results

In Section 4.1, regarding the strength of the identification strategy, we discussed in detail the **balancedness** of the sample, **anticipation**, **non-compliance**, and **confounding** events.²⁷ In this section, we provide new robustness checks about the main result of the

²⁴This finding is consistent with the previous literature. For instance, Ura and Wohlfarth (2010) show that voter support for checks and balances (and the separation of powers more generally) is reflected by the simultaneous movement of trust in the legislative and judiciary branches. These results are independent of the alignment of preferences between these branches but generally depend on trust in these institutions.

²⁵These results mean that compared to their level, trust in these national institutions decreased between 4.6 and 9% because of the Ruling.

²⁶The reform of the Statute of Autonomy had the approval of 80% of Catalan voters in the 2006 referendum.

²⁷In Appendix D, we provide additional complementary evidence about balancing in observables and non-observables (D.1), pre-trends (D.2), non-compliance (D.3), and collateral events (D.4).

effect of the Ruling on support for more autonomy. We summarize all these robustness checks in Figure 3. We show that our results do not depend on unobservable factors, geographical variation, sampling restrictions, sample size of treatment and control groups, selection bias due to non-responses, and inference. Keeping in mind that this figure summarizes the most important robustness checks around these issues, in Appendix E, we provide more details and robustness checks. The first column of Figure 3 reports the baseline estimate of the effect of the Ruling on the support for more autonomy (column 2 of Table 3) with the corresponding 95% confidence interval.

[INSERT FIGURE 3 HERE]

First, in column (2) of Figure 3, we show that our result is not likely to suffer from **selection on unobservables**, as the estimate of the effect of the Ruling is very similar when we include or exclude individual controls. Recent advances in the literature on the selection on unobservables discuss that this evidence is still not enough to rule out the selection on unobservables. Therefore, in Appendix E.1, we apply Oster (2019)’s methods and find that the selection on the unobservables should be extremely large to lead our estimated effect to 0. Moreover, in Appendix E.1, we show additional balancing and falsification tests that use the same wave of the survey and other waves.²⁸

Second, we show that our results do not depend on our study’s **geographical units**. In the paper, we mainly exploit within-*comarca* variation. However, in columns (3) to (5) of Figure 3, we show that our results are robust to different levels of the geographical fixed effects or even not having them at all. In Appendix E.2, we further show that our results are not driven by any particular geographical unit.

Third, in Section 4, we discuss why we imposed some **sampling restrictions** based on the hour and day of the interviews to improve the balancing of our treatment and control groups. In columns (6) to (8) of Figure 3, we show that our results are robust to not imposing sample restrictions. Appendix E.3 discusses further the reason for imposing them and shows that our results are robust to different sampling restrictions.

Fourth, we show that the small **sample size**, especially regarding the control group, is unlikely to be a problem. In columns (9) to (10) of Figure 3, we directly address this issue by restricting the sample (to have as many treated observations as in the control) and adding more waves of the survey, respectively. Moreover, as Fisherian randomization inference can provide a way to obtain proper inference in the setting of a small number of observations, in Appendix E.4 we show that our results are robust to this alternative specification.

Fifth, a crucial point is selection bias due to the possibility of **non-response** to the survey. To address this issue, we construct an indirect measure of refusal to participate in the survey based on the waiting time between interviews conducted by the same inter-

²⁸We conduct several placebos by changing the day of the Ruling, and we show insignificant effects when applying these placebos to the support for secession.

viewer.²⁹ In column (11) of Figure 3, we show that our main result is not altered when we control for this proxy. In Appendix E.5, we further discuss the strength of this proxy to rule out participation bias. Moreover, we show direct evidence that non-response to specific questions does not change after the Ruling.

Sixth, given the large number of robustness checks in Figure 3, we address the **inference** concerns related to multiple hypothesis testing by showing in that figure adjusted confidence intervals. We correct the p-values of each specification controlling for the False Discovery Rates (FDR) as in Anderson (2008). Then we compute confidence intervals addressing the multiple hypothesis testing problem.³⁰ Similarly, the multiple hypothesis testing problem also arises since we test the effect of the Ruling on many different outcomes. In Appendix E.6, we show that all the estimated effects of the Ruling using different dependent variables are robust when calculating FDR-adjusted p-values. Moreover, as discussed in Section 4, in the main specification of the paper we used standard errors clustered at province-days of the interview. We show robustness of our main result to different clustering in Appendix E.6.

Finally, while we use OLS to estimate the effects of the Ruling, column (4) of Table 3 shows that the result on support for more autonomy is robust using an alternative estimation method as ordered probit. Appendix E.7 shows that all the other results are robust to non-linear probability and ordered models.

6 Identitarian and partisan cleavages

We pose that the Ruling brought forward two affected cleavages in Catalonia: the identitarian and partisan ones. On the one hand, the fact that the Spanish regions' overlap with historical ethnolinguistic groups leads us to study the Ruling's effect on identity and its heterogeneity in Section 6.1. On the other hand, since legislators of the Popular Party—who appealed the Catalan Constitution—and its supporters are pro-centralization, in Section 6.2, we investigate the polarization along this dimension. Additionally, we study the effect of the Ruling on voting intentions.

6.1 Identity and polarization

Recent contributions to endogenous identity (summarized in Shayo, 2020) argue that citizens identify more intensely “with the groups that are most salient, formalized as those having the strongest policy conflict”.³¹ Having shown that the Ruling did not go unnoticed, we study its effect on identity. Within this framework, we test whether the Ruling increased self-identification with Catalonia and whether polarization increases along these lines. Additionally, we study the possibility that our results are confounded with the 2010

²⁹The rationale behind this proxy is that if some individuals decide not to participate in the survey, the interval between the end of one interview and the start of the next should be larger.

³⁰In the different parts of Appendix E we report all robustness checks in Figure 3 without the adjusted p-values.

³¹Page 2373 in Bonomi, Gennaioli and Tabellini (2021).

FIFA World Cup games.

First, in the CEO survey, respondents are asked about their self-identification with Catalonia and/or Spain. They can choose one among the following categories in the variable *Feeling Catalan*: they feel (i) only Spanish; (ii) more Spanish than Catalan; (iii) both Spanish and Catalan alike; (iv) more Catalan; and (v) only Catalan. Figure 4 shows the predicted values for the marginal effects of the Ruling for each category, estimated with an ordered probit regression. Notably, the effect of the Ruling is an increase in identification with Catalonia, i.e., categories (i) to (iii) decrease in favor of (iv) and especially (v). Self-identification as “only Catalan” increases by 2.3 percentage points, and “more Catalan than Spanish” increases by 0.9 percentage points. In contrast, the Ruling decreases self-identification with “only Spanish”, “more Spanish than Catalan”, and “both Spanish and Catalan alike” by between 0.5 and 1.4 percentage points. All the marginal effects are statistically significant at a 5% level of significance. In Appendix C.3.1, we present additional results of the impact of the Ruling on self-identification (including the ordered probit estimation). More generally, column (1) of Table 5 illustrates that respondents increasingly report self-identifying more as Catalan after the Ruling.³²

[INSERT FIGURE 4]

Second, we investigate whether identity “polarize[s] ingroup-outgroup conflict along the currently salient dimension”.³³ Polarization increases if the response about support for more autonomy becomes more different after the Ruling between people who identify more as Catalan and people who identify more as Spanish. In testing this argument, we cannot conduct exactly this heterogeneity analysis using the self-reported identity, as the mediating factor (group identification) is endogenous. Instead, we test whether the Ruling polarizes preferences for more autonomy for people with different Catalan heritage.

The use of *Catalan Heritage*—measured as having both parents born in Catalonia—is empirically and theoretically justified. First, it is an exogenous variable that can be used to test heterogeneity effects properly. Moreover, it is the variable that predicts the most identification with the Catalan identity (as reported in Appendix C.3.2 and C.3.3). Second, it follows the theoretical explanation of identity formation in which parents pass their identity to their children (Bisin et al., 2011).

The main polarization result about Catalan autonomy is in column (2) of Table 5, where we estimate the heterogeneous effect of the Ruling according to Catalan heritage, using the strategy described in Section 4. People with both Catalan parents tend to support greater autonomy for Catalonia. Their support increased even further for these people after the Ruling. By contrast, after the Ruling, people without Catalan heritage

³²People interviewed after the Ruling had 0.086 standard deviations higher self-identification with the Catalan nation. The standard deviation of the variable *Feeling Catalan* is 1.09.

³³Page 2373 in Bonomi, Gennaioli and Tabellini (2021).

did not increase their support for more autonomy. Hence, polarization in the preferred relationship between Catalonia and Spain among people with different Catalan heritage increased after the Ruling.

These results hinge on Catalan heritage. Hence, to ensure that this variable mainly represents an exogenous proxy of identity (instead of other socio-demographics), in Appendix E.8, we show that our polarization effects are robust when controlling for many other heterogeneities.³⁴

[INSERT TABLE 5 HERE]

Robustness to the 2010 FIFA World Cup: The only major event during the interview period was the 2010 football World Cup, which Spain won on July 11. Since football games could influence national identity, as in Depetris-Chauvin, Durante and Campante (2020), we demonstrate that these matches do not drive our results. If the findings of that paper apply to our case, then the World Cup could enhance Spanish self-identification at the expense of the Catalan one.³⁵

Specifically, the Spanish national team participated in two World Cup matches that could impact our findings: the round of 16 and the quarterfinals. The semifinal on July 7 is excluded from our analysis since we limit our focus to the first seven days of fieldwork. A detailed overview of the fieldwork and World Cup matches can be found in Figure A.20. It is important to note that all these matches began at 8:30 pm CEST. In our restricted sample, we concentrate on interviews conducted before 7 pm, which means they took place before the game commenced. As a result, if there were any influence from these matches, it would only affect respondents from the subsequent days.

In columns (3), (4), and (5) of Table 5, we estimate the model in Equation 1, including the dummy variables "Post-round of 16" and "Post-quarterfinal," which are assigned a value of 1 for all days following the respective matches. Column (3) indicates that the effect of the Ruling on support for more autonomy does not change, even when considering the potential influence of the World Cup matches. Column (4) suggests that its impact on *Feeling Catalan* might even be intensified, while column (5) confirms that the polarization effects remain consistent. Further evidence supporting that our results are not influenced by the World Cup and its potential role in affecting Catalan identity can be found in Appendix E.9.

6.2 Parties and polarization

This section explores whether the Ruling ignited polarization around the partisan division, another significant cleavage in Catalonia. As the Popular Party (PP) appealed the Ruling,

³⁴In particular, with variables that might be collinear with Catalan heritage: sex, civil status, age, education, income, employment status, and the own respondent birthplace.

³⁵However, this potential bias could be offset by the significant presence of FC Barcelona players in the Spanish national men's team.

we explore whether the Ruling created further divisions in attitudes between PP and non-PP voters. Moreover, in Section 5, we showed that the Ruling increased attitudes toward decentralization. Consistently, we test whether the Ruling increased the intention to vote for parties more in favor of this stance.

First, similarly to Catalan heritage heterogeneity, having voted for the Popular Party also explains an increase in polarization. Note that even before the Ruling, PP voters in Catalonia already showed considerably less support for decentralization than voters of the other Catalan parties.³⁶ Since vote recall does not change—as shown in Figure A.21 in Appendix E.10—we can investigate how the Ruling intensified the partisan divide around the preferred form of organization. Figure 5 shows the heterogeneous effects of our baseline result by past vote. The figures plot the marginal effects of the Ruling for PP and non-PP voters on each decentralization option estimated by ordered probit. Non-PP voters’ attitudes shifted toward more decentralization (federal state and independence), while PP voters leaned toward even more centralization. This implies that the Ruling polarized political attitudes between the voters of the PP and the remaining Catalans. We also show this in column (1) of Table 6, which estimates the heterogeneous effect of the Ruling on the overall support for more autonomy.³⁷

[INSERT FIGURE 5 HERE]

Interestingly, we do not observe this cleavage in the backlash in trust in institutions. Following the Ruling, voters of the Popular Party decreased their trust in courts like other Catalans (see Table A.11 in Appendix C.4.3). A plausible explanation is that PP voters were disappointed with the Ruling for the opposite reasons to the rest of the Catalans. While the Ruling struck down 12% of the one hundred fourteen articles appealed, PP supporters might have perceived the Ruling as too lenient, whereas other Catalans might have viewed it as too stringent. This interpretation aligns with the media coverage and political responses that followed the Ruling.³⁸

[INSERT TABLE 6 HERE]

Second, in column (2) of Table 6, we examine the effect of the Ruling on the intention to vote for the two main Catalan nationalist parties—that were more in favor of decentralization—ERC and CiU. We find that the Ruling increased the likelihood of

³⁶If we regress support for the regional option on having voted for the PP in the last Catalan election in the previous wave of the survey, we obtain a coefficient of 0.18 (0.015 s.e.), which means that PP voters were 18% more likely than other voters to support the regional choice. Summary statistics of the preferred institutional relationship between Spain and Catalonia by past vote are presented in Table A.3 in Appendix A.3.

³⁷A discussion of the heterogeneous effect of the Ruling on voters of the remaining parties can be found in Appendix C.4.1.

³⁸See Appendix C.4.3 for additional evidence.

expressing the intention to vote for these parties by 9 percentage points.³⁹ One interpretation of this result is that the effect of the Ruling is *demand-driven*. That is, voters who increased their support for more autonomy also started endorsing the platform of the parties advocating in favor of more decentralization.

Alternatively, the effect could be *supply-driven*, i.e., driven by a sudden opportunistic change in the strategies of political parties. Several pieces of evidence rule out this hypothesis. First, it is improbable that political parties could credibly and uniformly alter and communicate their strategy overnight. This is particularly notable given that none of the non-secessionist parties formally embraced the independence cause until 2012.⁴⁰ Second, if parties suddenly changed their behavior, we should observe a larger effect due to greater exposure to the new strategies when we estimate the effect of the Ruling in later days. In Figure 6, the estimate of the effect of the Ruling is similar when estimated on the first day of the interviews or the following days.⁴¹ Third, we investigate another mechanism: the primary public television channel (TV3)–funded by the Catalan Government and alleged supporter of secessionism (Durán, 2018). If it was in charge of these parties’ communication strategy, we should observe stronger effects of the Ruling according to the TV3 viewership. We discard this possibility in Appendix C.4.4. In this appendix, we also show that individuals whose main sources of information are social media platforms or their friends react similarly to the rest of the population. These results suggest that our estimates of the effect of the Ruling do not seem to be driven by these possible social pressure biases.

[INSERT FIGURE 6 HERE]

6.3 Long-term effects

Multiple events took place after the Ruling. For instance, in the Catalan elections of November 2010, Catalan Nationalist parties notably increased their representation in the Catalan Parliament. In 2012, CiU formally updated its political platform or manifesto into a pro-independence one. In 2015, Catalan nationalist parties framed the Catalan elections as a plebiscite for independence. CiU (center-right) and ERC (left) presented a

³⁹ This result implies that people interviewed after the Ruling had a 16% increase in their intention to vote for Catalan nationalist parties. In Appendix C.4.2, we break down the partisan results by the individual party, and we show that PSC, the Catalan section of the Socialist Party governing Spain at the time, is the main party losing the intention to vote after the Ruling. To further confirm that our results are not driven by sample imbalance, in column (3) of Table 6, we show no significant differences in past votes for nationalist parties before and after the Ruling. Appendix E.10 shows that this non-significant effect is confirmed when we improve the precision of the estimates.

⁴⁰ As reviewed in Appendix B.3, CiU formally transitioned towards secessionism in 2012.

⁴¹ As the number of interview observations for each day varies, we also use as weights the number of people interviewed on a specific day. Day 5 of the interviews is the day with fewer respondents in the sample, as only 56 people were interviewed. In Appendix F.1, we provide evidence that the effect of the Ruling is persistent, even in posterior waves of the political survey. In Appendix E.3, we show additional evidence that the estimated coefficient of the Ruling does not increase as time passes after the survey. We show that when we have longer windows around the Ruling (by increasing observations in the sample), we do not observe a larger effect of the Ruling.

joint list called *Junts pel Sí*. While these events would prevent us from claiming causal, long-lasting effects of the Ruling, one could argue that it may have been a catalyst.

Accordingly, the Ruling may have influenced the identitarian and partisan reality in Catalonia in the long term. In particular, polarization around different identitarian traits seems persistent. To show it, in a differences-in-differences setting, we compare observations with different Catalan heritage in waves before and after the Ruling from 2006 to up to one year after the Ruling. In Appendix F.2.1, we give more details about this specification. Table A.31 in Appendix F.2.2 shows evidence of a long-lasting effect: polarization maintained one year after the Ruling.

Regarding voting, in Appendix F.3, we show that the support for the secessionist coalition *Junts pel Sí* in the 2015 elections may be associated with the Ruling. In the municipalities where secessionist parties were historically stronger, the effect of the Ruling in 2010 is associated with an increase of 0.36 percentage points for this pro-independence coalition in 2015. Then, this suggestive evidence indicates that the Ruling might have also generated electoral polarization across the municipalities inside Catalonia. Moreover, the coalition won and elected Puigdemont as president of Catalonia, and in 2017, he declared (and suspended) Catalan independence.

7 Concluding remarks

Despite a large body of literature studying the effects of judicial decisions on public opinion (especially U.S. Supreme Court decisions), we are the first to show a simultaneous backlash in political attitudes and trust in institutions. That is, we show that the decision of the Spanish Constitutional Court in 2010 to strike down and curtail some of the articles granting further decentralization in the Catalan Constitution provoked a 20% increase in support for Catalan independence and a 10% decrease in trust in courts. Moreover, this backlash extends beyond an intensification of political attitudes. The Ruling also made Catalan citizens self-identify more with the Catalan identity than with the Spanish one. Similarly, it also increased their intention to vote for Catalan nationalist parties, supporting further decentralization or independence. This intensification of political attitudes came with polarization along identity and voting divisions.

The ruling of the Constitutional Court was released amidst a severe economic crisis. Despite that the crisis is often brought up as an explanation for the increase in secessionism in Catalonia, our analysis suggests that this was not a critical element behind our results. Still, as discussed in Gehring and Schneider (2020), the prosperity of a region may be necessary for having a large support for independence, which is the case of Catalonia.

While our paper pivots around judicial decisions, one might think that a similar backlash could emerge in response to decisions from other branches of government or on other issues. For instance, backlash effects have also been found in the literature on law approvals, for the issues of extending gender rights (Wheaton, 2022) or language prohibition in the U.S. (Fouka, 2020). However, in the issue of same-sex relationships,

Aksoy et al. (2020) finds legitimation in Europe. Hence, what determines the public reaction to support or oppose the decision?

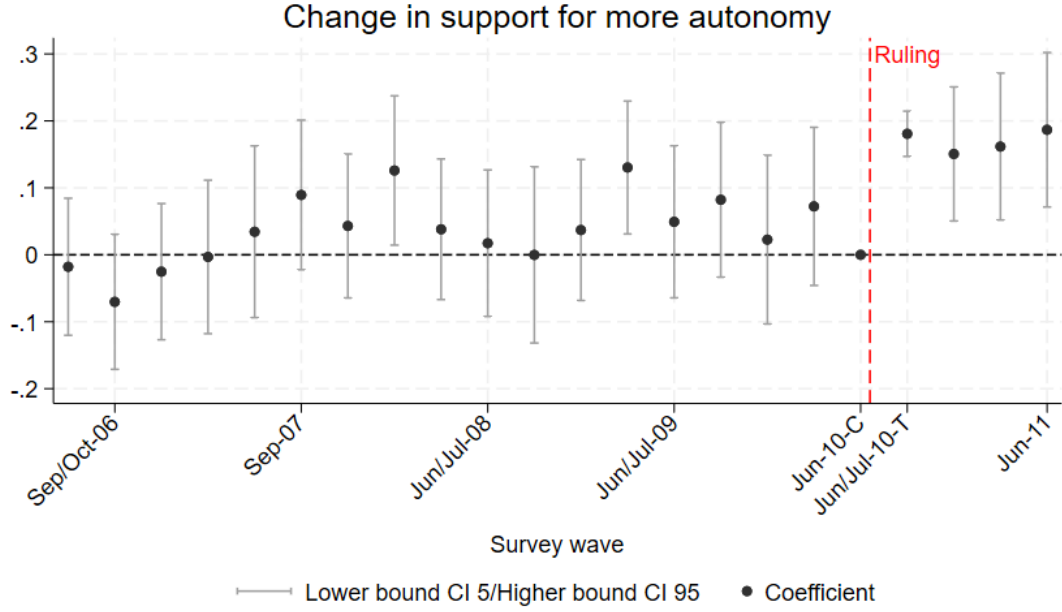
A plausible explanation is the prior popular endorsement of the decision. We can speculate that backlash can follow if a decision goes against a policy with strong public support. Moreover, if this decision concerns a sensitive topic affecting a distinctive group, these individuals may react homogeneously. Therefore, under these circumstances, the backlash can extend to the existing political cleavage and generate polarization in citizen's attitudes. For instance, suppose these groups were defined on an identitarian dimension and perceived a decision as unfavorable to them. In that case, they may strengthen their group identity and solidify their stance on the issue (as in Fouka, 2020 and Dehdari and Gehring, 2022).

Our results complement the existing literature and help organize future policy discussions and research. For instance, regarding the U.S. Supreme Court decision to overturn *Roe v. Wade*, one could investigate whether specific patterns emerge. For example, will attitudes toward female rights be more extreme? Will the Court's legitimacy decrease? Will these attitudes become more polarized in the liberal/conservative continuum? Building on the earlier logic, we posit that the overruling could produce backlash: it might prompt a shift among citizens unsatisfied with the ruling towards more *pro-choice* views on abortion rights. This can further polarize the American electorate and decrease their trust in national institutions.

8 Figures and Tables

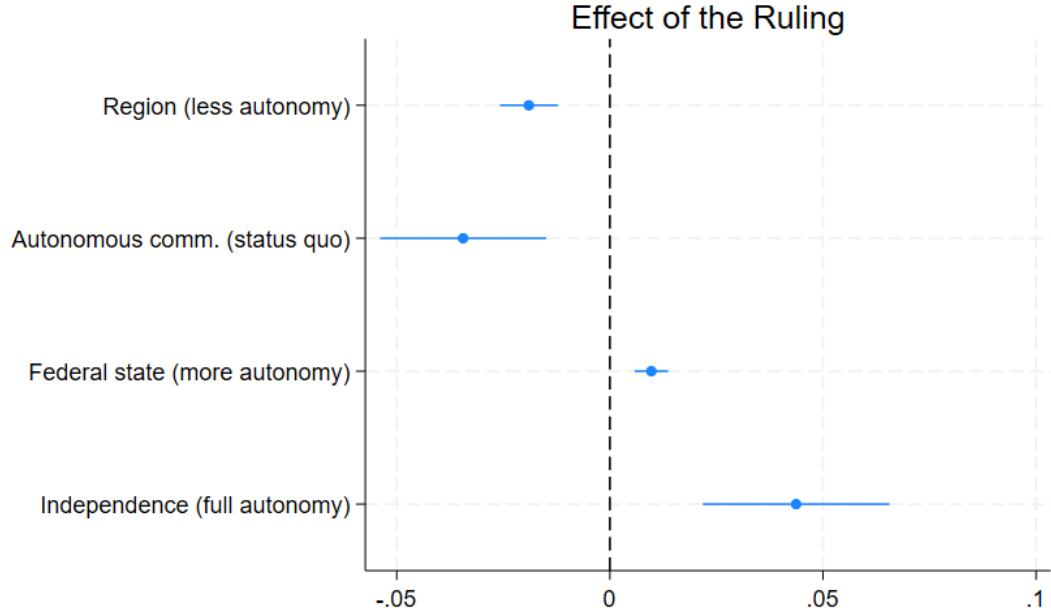
8.1 Figures

Figure 1: Event-study: change in preferred relationship between Spain and Catalonia across survey waves



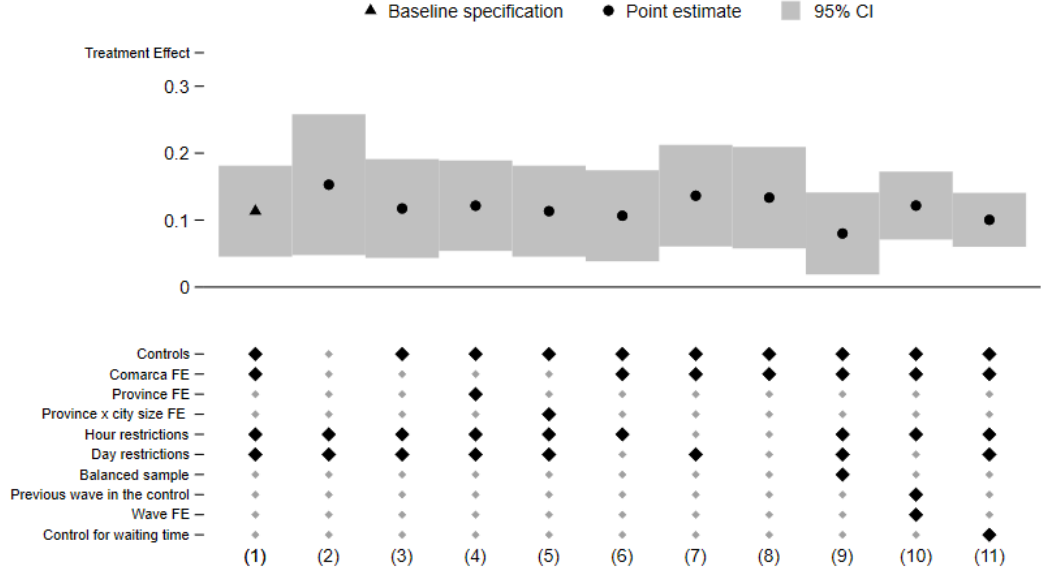
Notes: The graph reports the estimated coefficient of the effect of each survey wave on *More autonomy* using CEO waves from June 2006 to October 2011. The omitted category is the control group (*Jun-10-C*) and comprises the observations from the CEO third wave of 2010 before the Ruling that took place on June 28 at 7 pm. *Jun/Jul-10-T* refers to our treatment group, observations from the CEO third wave of 2010 after the Ruling. Coefficients estimated by OLS using probability weights regressing *More autonomy* on wave dummies. Standard errors clustered at province-survey wave level. *More autonomy*: variable that takes values from 1 to 4 if the respondent prefers Catalonia to be a region (less autonomy than status quo), Autonomous Community (status quo), federal state (more autonomy than the status quo), or independent state, respectively. *Lower-Upper Bound CI 95*: lower and upper bounds of the 95% confidence interval.

Figure 2: Marginal effects of the Ruling on each preferred relationship between Spain and Catalonia



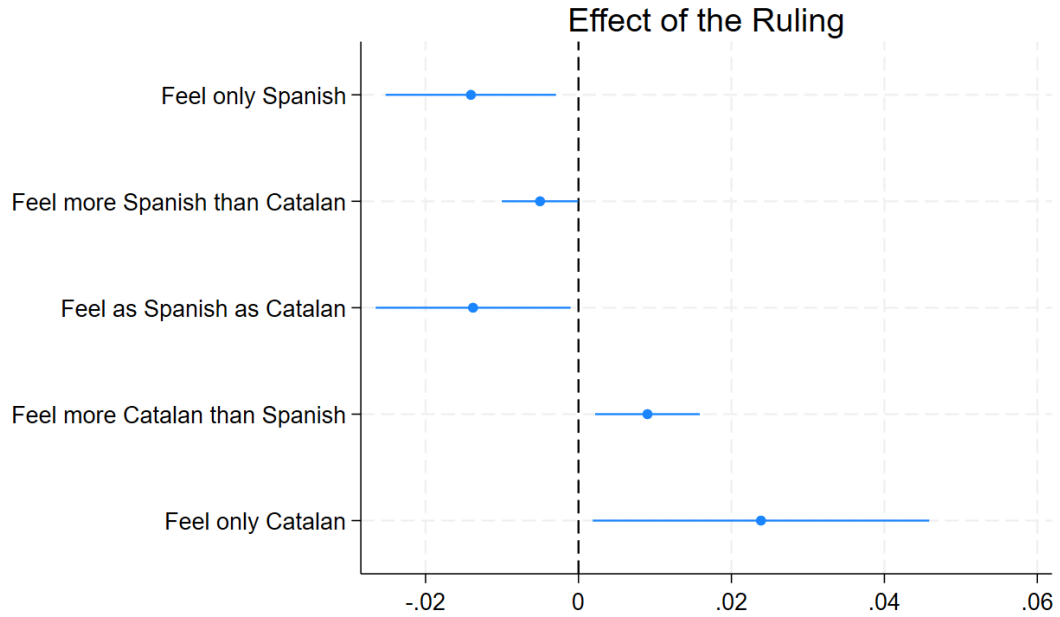
Notes: This figure plots the marginal effect of *Ruling* on the four options for the preferred relationship between Spain and Catalonia, estimated in column (4) of Table 3. Each point refers to the estimated coefficient of the effect of *Ruling* on one specific value of the variable *More autonomy* and each line refers to the 95% confidence interval. The marginal effects are estimated after regressing, by Ordered Probit and using probability weights, *More autonomy* on *Ruling*, all the controls and comarca fixed effects. The list of controls is reported in Appendix A.2.1. *More autonomy*: variable that takes values from 1 to 4 if the respondent prefers Catalonia to be a region (less autonomy than status quo), Autonomous Community (status quo), federal state (more autonomy than the status quo), or independent state, respectively. *Ruling*: dummy taking 1 for all observations interviewed after June 28 2010 at 7 pm, and 0 otherwise. Sample of people interviewed before 7 pm and in the first seven days of interviews in the CEO third wave of 2010. Standard errors are clustered at the province-day of the interview level.

Figure 3: Robustness checks: Effect of the Ruling on the preferred relationship between Spain and Catalonia



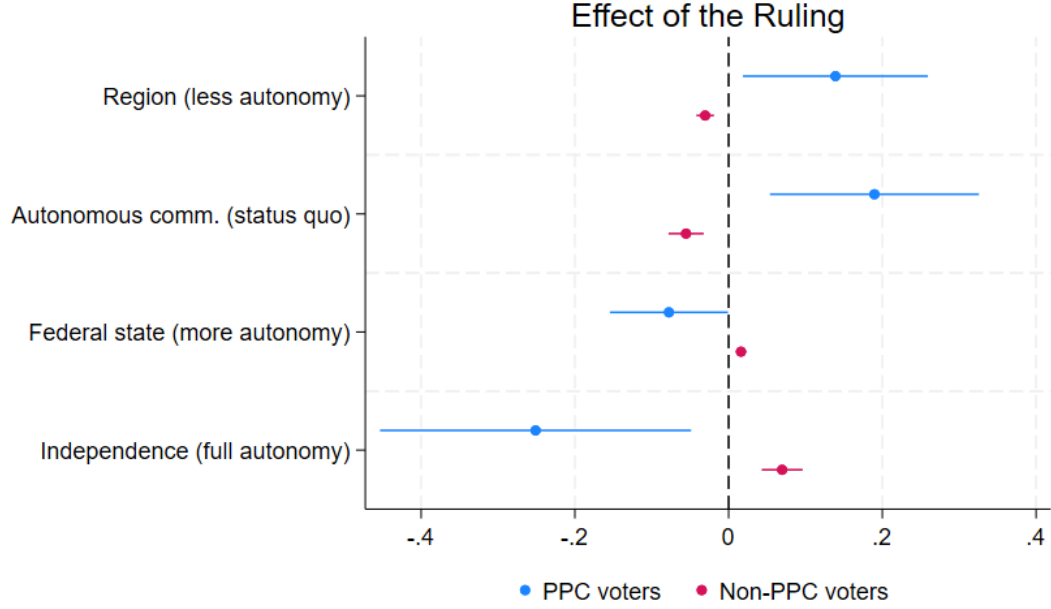
Notes: This figure plots the effect of *Ruling* on the preferred relationship between Spain and Catalonia, using many different specifications. Each point refers to the estimated coefficient of the effect of *Ruling* on *More autonomy* and each grey bar refers to the 95% confidence interval. The marginal effects are estimated after regressing, by OLS and using probability weights, *More autonomy* on *Ruling*, including the controls or fixed effects (*FE*) listed in the legend of the table. The list of controls is reported in Appendix A.2.1. *More autonomy*: variable that takes values from 1 to 4 if the respondent prefers Catalonia to be a region (less autonomy than status quo), Autonomous Community (status quo), federal state (more autonomy than the status quo), or independent state, respectively. *Ruling*: dummy taking 1 for all observations interviewed after June 28 2010 at 7 pm, and 0 otherwise. When we impose hour restrictions, we use the sample of people interviewed before 7 pm. When we impose day restrictions, we use the sample of people interviewed in the first seven days of interviews. When we use a balanced sample, we restrict the treatment group to the first 170 treated observations interviewed before 7 pm. All specifications use the sample of people interviewed in the CEO third wave of 2010 and when we use the previous wave in the control we also use the sample of people interviewed in the CEO second wave of 2010. When we control for waiting time, we control for a variable measuring the time between the beginning of that interview and the end of the previous interview done by the same interviewer. Standard errors are clustered at the province-day of the interview level and then the 95% confidence intervals are retrieved from False Discovery Rates adjusted p-values, following the procedure in Anderson (2008). The corresponding regression tables with unadjusted p-values can be found in Appendix E.

Figure 4: Marginal effects of the Ruling on each national self-identification



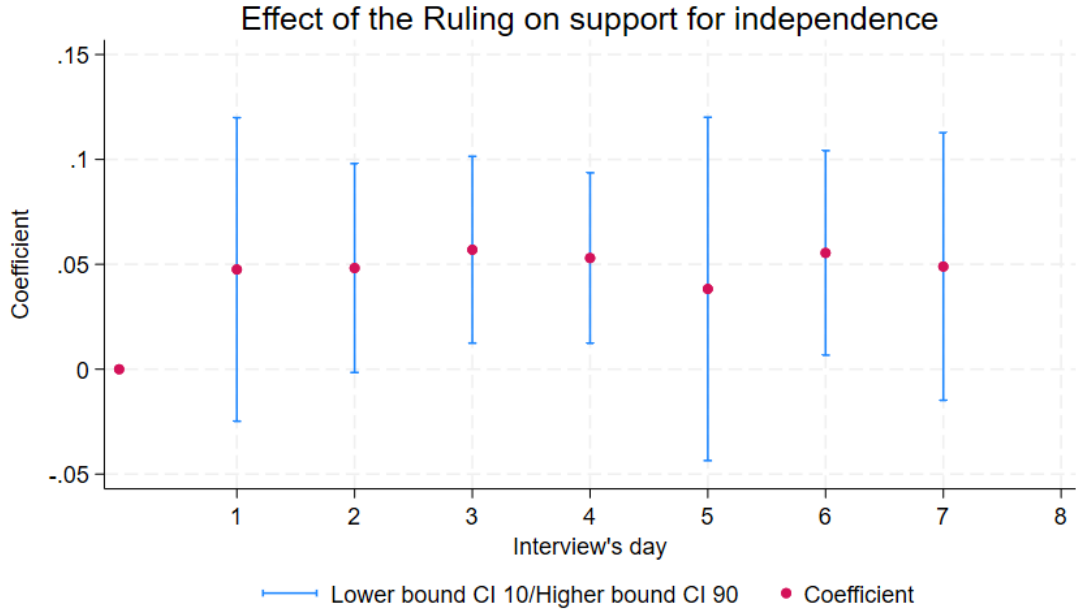
Notes: This figure plots the marginal effect of *Ruling* on the five options for national identification, estimated in column (2) of Table A.8 in Appendix C.3.1. Each point refers to the estimated coefficient of the effect of *Ruling* on one specific value of the variable *Feeling Catalan* and each line refers to the 95% confidence interval. The marginal effects are estimated after regressing, by Ordered Probit and using probability weights, *Feeling Catalan* on *Ruling*, all the controls and comarca fixed effects. The list of controls is reported in Appendix A.2.1. *Feeling Catalan*: variable taking 5 values according to which national group the interview feel to belong. The variable takes value 1 if the interviewed feels only Spanish, 2 if the interviewed feels more Spanish than Catalan, 3 if the interviewed feels as Spanish as Catalan, 4 if the interviewed feels more Catalan than Spanish, and 5 if the interviewed feels only Catalan. *Ruling*: dummy taking 1 for all observations interviewed after June 28 2010 at 7 pm, and 0 otherwise. Sample of people interviewed before 7 pm and in the first seven days of interviews in the CEO third wave of 2010. Standard errors are clustered at the province-day of the interview level.

Figure 5: Heterogeneities of the effect of the Ruling on each preferred relationship between Spain and Catalonia according to past vote



Notes: This figure plots the marginal effects of *Ruling* on the four options for the preferred relationship between Spain and Catalonia for people that voted or not for *Partit Popular de Catalunya* (*PPC voters*), estimated in column (2) of Table A.10 in Appendix C.4.1. Each point refers to the estimated coefficient of the effect of *Ruling* on one specific value of the variable *More autonomy* and each line refers to the 95% confidence interval. Blue points and lines refer to *PPC voters* at the Catalan Parliament elections of 2006, and red points and lines for the other voters (*Non-PPC voters*). The marginal effects are estimated after regressing, by Ordered Probit and using probability weights, *More autonomy* on *Ruling*, *Past vote PPC*, the interaction between *Ruling* and *Past vote PPC*, all the controls and comarca fixed effects. The marginal effect for *PPC voters* is computed as the sum of the marginal effect of *Ruling* and the marginal effect of *Ruling x past vote PPC*. The list of controls is reported in Appendix A.2.1. *More autonomy*: variable that takes values from 1 to 4 if the respondent prefers Catalonia to be a region (less autonomy than status quo), Autonomous Community (status quo), federal state (more autonomy than the status quo), or independent state, respectively. *Past Vote PPC*: dummy taking 1 if the respondent voted for *Partit Popular de Catalunya* (PPC) at the Catalan Parliament elections of 2006, and taking 0 if otherwise. If the interviewed could not vote, did not vote, or conducted a blank or null vote this variable is coded as missing. *Ruling*: dummy taking 1 for all observations interviewed after June 28, 2010, at 7 pm, and 0 otherwise. Sample of people interviewed before 7 pm and in the first seven days of interviews in the CEO third wave of 2010. Standard errors are clustered at the province-day of the interview level.

Figure 6: Event-study: Heterogeneity of the effect of Ruling on support for independence by day



Notes: The graph reports the estimated coefficient of the effect of *Ruling* interacted by the day of the interview. Each point refers to the estimated coefficient of the effect of *Ruling* on *Independence* for each day and each line refers to the 90% confidence interval. Coefficients are estimated after regressing, by OLS, *Independence* on *Ruling*, the interaction between *Ruling* and the day of the interview, individual controls and comarcas fixed effects. The coefficient equals 0 in the day before the ruling took place. The list of controls is reported in Appendix A.2.1. Given that the number of interviewed people varies by day, each observation is weighted by the number of observations interviewed in that particular day. *Independence*: dummy reflecting the respondent's preference for Catalonia to become an independent state. *Ruling*: dummy taking 1 for all observations interviewed after June 28, 2010, at 7 pm, and 0 otherwise. Sample of people interviewed before 7 pm in the first seven days of interviews in the CEO third wave of 2010. Standard errors clustered at province-day of the interview level.

8.2 Tables

Table 1: Main summary statistics and mean difference before and after the Ruling

Variable	Mean		Num. obs.	Diff. pre-post		
	Pre	Post		W3-2010	W3-2010 & W2-2010	W3-2010 Comarca FE
	(1)	(2)	(3)	(4)	(5)	(6)
Interview in catalan	0.73	0.67	950	-0.06	0.01	-0.06
Speak catalan at home	0.52	0.46	724	-0.05	-0.02	-0.05
Speak catalan at work	0.27	0.25	383	-0.02	0.02	-0.01
Speak catalan with friends	0.40	0.40	654	0.00	-0.00	0.00
Born in Catalonia	0.73	0.71	960	-0.02	-0.01	-0.02
Born in rest of Spain	0.25	0.27	289	0.02	0.01	0.02
Foreign born	0.02	0.02	28	0.00	0.00	0.00
Father born in Catalonia	0.48	0.43	660	-0.04	-0.03	-0.05
Father born in rest of Spain	0.50	0.55	594	0.05	0.03	0.05
Father foreign born	0.02	0.02	21	-0.01	-0.01	-0.01
Mother born in Catalonia	0.46	0.44	671	-0.02	-0.01	-0.02
Mother born in rest of Spain	0.52	0.54	574	0.02	0.01	0.02
Mother foreign born	0.02	0.02	30	0.00	-0.00	0.00
Female	0.60	0.56	752	-0.04	-0.01	-0.04
Married	0.67	0.61	788	-0.06	-0.01	-0.05
Educ. lower ESO (6th grade)	0.11	0.09	129	-0.01	-0.00	-0.02
Educ. ESO (10th grade)	0.39	0.33	417	-0.06	-0.03	-0.06
Educ. bachillerato (12th grade)	0.24	0.30	380	0.06	-0.00	0.06
Educ. university	0.27	0.28	345	0.02	0.03	0.01
Net family income lower 1k	0.14	0.16	161	0.02	-0.01	0.01
Net family income 1k-2k	0.44	0.38	383	-0.06	0.00	-0.05
Net family income 2k-3k	0.21	0.28	263	0.07*	0.03	0.08*
Net family income 3k or more	0.21	0.18	202	-0.03	-0.02	-0.04
Self-employed	0.08	0.08	114	0.00	-0.01	0.01
Employed	0.41	0.37	502	-0.04	0.03	-0.03
Unemployed	0.51	0.55	657	0.04	-0.02	0.02
Age	50.79	50.55	.	-0.24	0.90	-0.91
Age squared	2812.15	2843.92	.	31.77	88.78	-45.14
City pop. 0-2000	0.05	0.05	131	0.00	-0.00	0.00
City pop. 2001-10000	0.15	0.14	254	-0.01	-0.01	0.01
City pop. 10001-50000	0.28	0.26	367	-0.02	-0.01	-0.01
City pop. 50001-150000	0.19	0.22	294	0.03	0.03	0.04
City pop. 1500001-1000000	0.19	0.10	82	-0.08**	-0.03*	-0.07**
City pop. 1000000 or more	0.15	0.23	149	0.08**	0.03	0.04
F-stat joint significance	.	.	.	1.03	1.37	0.90
p-value joint significance	.	.	.	0.42	0.10	0.61

Notes. *Mean:* mean of the reported variable. *Pre (post):* sample of people from *W3-2010* interviewed before (after) the Ruling. *Num. obs.:* Number of observations in the sample that are from the category under consideration (this cannot be computed for age and age squared as they are continuous variables). *W2-2010:* sample of people interviewed in the CEO second wave of 2010 before 7 pm. *W3-2010:* sample of people interviewed before 7 pm and in the first seven days of interview in the CEO third wave of 2010. *Diff. pre-post:* t-test of the difference in the reported variable for respondents in the sample considered interviewed before and after the Ruling, obtained regressing the reported variable on the variable *Ruling* on the sample considered using probability weights and robust standard errors. *Comarca FE:* Difference pre-post computed including comarca fixed effects. *F-stat (p-value) joint significance:* F-statistics and the corresponding p-value obtained after regressing *Ruling* on all the variables under consideration (and comarca fixed effects in the last column) on the sample considered using probability weights. *** p<0.01, ** p<0.05, * p<0.1

Table 2: Effect of the Ruling on perceived problems

	Most important problems			
	Catalonia- Spain	Statute of autonomy	Economy & labor market	Catalan financing
	(1)	(2)	(3)	(4)
Ruling	0.0776*** (0.0175)	0.0601*** (0.0147)	-0.120** (0.0448)	0.0126 (0.00801)
Observations	970	970	970	970
R-squared	0.05	0.06	0.03	0.03
Average y	0.09	0.07	0.64	0.01

Notes. *Most important problems:* dummy taking 1 if the interviewed mentions one of the following topics as the most important problem of Catalonia: the relationship between Spain and Catalonia (*Catalonia-Spain*), the Catalan Statute of Autonomy (*Statute of autonomy*), unemployment, job insecurity, the functioning of the economy, or the low level of wages (*Economy & labor market*), the Catalan financing system (*Catalan financing*). *Ruling:* dummy taking 1 for all observations interviewed after June 28, 2010, at 7 pm, and 0 otherwise. All regressions include individual controls and comarca fixed effects. The list of controls is reported in Appendix A.2.1. *Average y:* mean of the dependent variable. Sample of people interviewed before 7 pm and in the first seven days of interviews in the CEO third wave of 2010. Regressions estimated by OLS using probability weights. Standard errors clustered at province-day of the interview level. *** $p < 0.01$, ** $p < 0.05$, * $p < 0.1$

Table 3: Effect of the Ruling on the preferred relationship between Spain and Catalonia

	More autonomy		Independence		More autonomy	
	(1)	(2)	(3)	(4)	(5)	(6)
Ruling	0.153** (0.0577)	0.113*** (0.0306)	0.0530*** (0.0176)	0.175*** (0.0525)	0.128*** (0.0387)	0.139*** (0.0382)
Observations	1199	960	960	960	3032	4623
R-squared	0.00	0.29	0.18	.	0.26	0.25
Comarca FE	No	Yes	Yes	Yes	Yes	Yes
Controls	No	Yes	Yes	Yes	Yes	Yes
Additional FEs	No	No	No	No	Wave, Post-h19 & Post-Day7	Wave, Post-h19 & Post-Day7
Sample	W3-2010	W3-2010	W3-2010	W3-2010	W2-W3-2010	W2-W3-W4-2010
Restrictions	Yes	Yes	Yes	Yes	No	No
Estimation	OLS	OLS	OLS	O-Probit	OLS	OLS
Average y	2.75	2.75	0.26	2.75	2.75	2.76

Notes. *More autonomy*: variable that takes values from 1 to 4 if the respondent prefers Catalonia to be a region (less autonomy than status quo), Autonomous Community (status quo), federal state (more autonomy than the status quo), or independent state, respectively. *Independence*: dummy reflecting the respondent's preference for Catalonia to become an independent state. *Ruling*: dummy taking 1 for all observations interviewed after June 28 2010 at 7 pm, and 0 otherwise. Regressions in columns (2) to (6) include individual controls and comarca fixed effects. The list of controls is reported in Appendix A.2.1. The estimates of the effects of the controls are presented in Table A.6 in Appendix C.2.1. Columns (5) and (6) additionally include the fixed effects reported in *Additional FEs*. *Wave FE*: wave fixed effects. *Post-h19 FE*: dummy taking 1 for all observations interviewed at 7 pm or after, and 0 otherwise. *Post-Day7 FE*: dummy taking 1 for all observations interviewed after the first seven days of interviews, and 0 otherwise. *Average y*: mean of the dependent variable. Columns (1) to (4) use the sample of people interviewed in the CEO third wave of 2010 (*W3-2010*) before 7 pm and in the first seven days of interviews (*Restrictions: Yes*), and columns (5) and (6) without any day or hour restriction (*Restrictions: No*). Additionally, column (5) uses observations from the CEO second wave of 2010 (*W2-2010*) in the control group, and column (6) also observations interviewed in the CEO fourth wave of 2010 (*W4-2010*) in the treatment group. Regressions estimated by OLS or Ordered Probit (*O-probit*) using probability weights. Column (4) of the table reports the coefficient estimates of the ordered probit regression, while the marginal effects are shown in Figure 2. Standard errors clustered at the province-day of the interview level. *** p<0.01, ** p<0.05, * p<0.1

Table 4: Effect of the Ruling on the trust in democratic institutions

	Trust						Insatisf.
	Courts	Esp Gov't	Esp Parl.	Cat Gov't	Cat Parl.	Parties	democr.
	(1)	(2)	(3)	(4)	(5)	(6)	(7)
Ruling	-0.355*** (0.121)	-0.262* (0.145)	-0.188*** (0.0616)	-0.0215 (0.0816)	0.00513 (0.0739)	-0.252** (0.120)	0.0572* (0.0296)
Observations	961	991	973	996	971	987	989
R-squared	0.02	0.04	0.03	0.02	0.02	0.00	0.03
Average y	3.89	3.66	4.04	4.70	4.91	3.57	0.61

Notes. *Trust*: variable reporting how much the interviewed trusts the following institutions from 1 to 10: courts (*Courts*), Spanish Government (*Esp Gov't*), Spanish Parliament (*Esp Parl.*), Catalan Government (*Cat Gov't*), Catalan Parliament (*Cat Parl.*), and political parties (*Parties*). *Insatisfaction democr.*: dummy taking 1 if the interviewed has small or no satisfaction with the functioning of the democracy, and taking 0 if the interviewed is enough or very satisfied. *Ruling*: dummy taking 1 for all observations interviewed after June 28, 2010, at 7 pm, and 0 otherwise. All regressions include individual controls and comarca fixed effects. The list of controls is reported in Appendix A.2.1. *Average y*: mean of the dependent variable. Sample of people interviewed before 7 pm and in the first seven days of interviews in the CEO third wave of 2010. Regressions estimated by OLS using probability weights. Standard errors clustered at province-day of the interview level. *** p<0.01, ** p<0.05, * p<0.1

Table 5: Effect of the Ruling and polarization on national identity

	Results		Robustness to World Cup		
	Feeling Catalan	More autonomy	More autonomy	Feeling Catalan	More autonomy
	(1)	(2)	(3)	(4)	(5)
Ruling	0.0936** (0.0434)	0.0384 (0.0431)	0.0846* (0.0439)	0.181*** (0.0428)	0.0183 (0.0489)
Catalan heritage		0.420*** (0.0470)			0.422*** (0.0466)
Ruling x Catalan heritage		0.221*** (0.0635)			0.220*** (0.0635)
Post-round of 16			0.0226 (0.0553)	-0.0840 (0.0528)	0.0193 (0.0529)
Post-quarterfinal			0.0496 (0.0297)	-0.0680 (0.0766)	0.0197 (0.0385)
Observations	987	960	960	987	960
R-squared	0.38	0.21	0.28	0.38	0.21
Average y	3.46	2.75	2.75	3.46	2.75

Notes. *Feeling Catalan*: variable taking 5 values according to which national group the interview feel to belong. The variable takes value 1 if the interviewed feels only Spanish, 2 if the interviewed feels more Spanish than Catalan, 3 if the interviewed feels as Spanish as Catalan, 4 if the interviewed feels more Catalan than Spanish, and 5 if the interviewed feels only Catalan. *More autonomy*: variable that takes values from 1 to 4 if the respondent prefers Catalonia to be a region (less autonomy than status quo), Autonomous Community (status quo), federal state (more autonomy than the status quo), or independent state, respectively. *Ruling*: dummy taking 1 for all observations interviewed after June 28, 2010, at 7 pm, and 0 otherwise. *Catalan heritage*: dummy taking 1 if the respondent's parents were both born in Catalonia, and 0 if one or both parents were born outside Catalonia. *Post-round of 16*: dummy taking 1 for all observations interviewed in the days after the round of 16 match of Spain against Portugal (June 29 2010 at 8.30 pm), and 0 otherwise. *Post-quarterfinal*: dummy taking 1 for all observations interviewed in the days after the quarterfinal match of Spain against Paraguay (July 3 2010 at 8.30 pm), and 0 otherwise. All regressions include individual controls and comarca fixed effects. The list of controls in columns (1), (3) and (4) is reported in Appendix A.2.1. The list of controls in columns (2) and (5) is reported in Appendix A.2.3. *Average y*: mean of the dependent variable. Sample of people interviewed before 7 pm and in the first seven days of interviews in the CEO third wave of 2010. Regressions estimated by OLS using probability weights. Standard errors clustered at province-day of the interview level. *** p<0.01, ** p<0.05, * p<0.1

Table 6: Effect of the Ruling and polarization on voting

	More autonomy	Catalan parties	
		Future vote	Past vote
	(1)	(2)	(3)
Ruling	0.191*** (0.0502)	0.0859*** (0.0242)	0.0582 (0.0382)
Past vote PPC	0.350 (0.307)		
Ruling x past vote PPC	-0.879** (0.410)		
Observations	650	595	672
R-squared	0.33	0.18	0.12
Average y	2.75	0.52	0.45

Notes. *More autonomy*: variable that takes values from 1 to 4 if the respondent prefers Catalonia to be a region (less autonomy than status quo), Autonomous Community (status quo), federal state (more autonomy than the status quo), or independent state, respectively. *Future vote Catalan parties*: dummy taking 1 if the respondent has the intention to vote for *Convergència i Unió* (CiU) or *Esquerra Republicana de Catalunya* (ERC) at the next elections for the Catalan Parliament, and taking 0 if the respondent intends to vote for another party. *Past vote Catalan parties*: dummy taking 1 if the respondent voted for CiU or ERC at the Catalan Parliament elections of 2006, and taking 0 if the respondent voted for another party. *Past Vote PPC*: dummy taking 1 if the respondent voted for *Partit Popular de Catalunya* (PPC) at the Catalan Parliament elections of 2006, and taking 0 if otherwise. Voting variables have missing values if the respondent cannot vote, intends not to vote, intends to conduct a blank or null vote, could not vote, did not vote, or conducted a blank or null vote. *Ruling*: dummy taking 1 for all observations interviewed after June 28, 2010, at 7 pm, and 0 otherwise. All regressions include individual controls and comarca fixed effects. The list of controls is reported in Appendix A.2.1. *Average y*: mean of the dependent variable. Sample of people interviewed before 7 pm and in the first seven days of interviews in the CEO third wave of 2010. Regressions estimated by OLS using probability weights. Standard errors clustered at province-day of the interview level. *** p<0.01, ** p<0.05, * p<0.1

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